



File No.: EXP202309109 (PS/00331/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

Based on the actions taken by the Spanish Agency for Data Protection and on the following:

BACKGROUND

FIRST: On 15/05/23, a letter was received by this Spanish Agency for Data Protection from the Municipal Police of the Town Hall of Torrevieja (Alicante), regarding events that occurred at the hotel establishment UNIQUE HOTEL APARTMENT, S.L with CIF: B54915855 of said locality, for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The facts described by the Local Police relate, among other issues, to a complaint they received for not providing the complaint forms of the Apartahotel to some clients. The events occurred on ***DATE.1, when a young couple appeared at the reception of the apartahotel to check in, and the person in charge of the establishment did not provide them accommodation, claiming that another person had registered before them using their personal data.

Following an inspection by the Local Police regarding the Customer Registration Book, it was verified that there was no numerical entry of the records, as they were loose sheets with scanned IDs. It was also confirmed that the establishment did not communicate such records to the security forces as mandated by current legislation.

Along with the letter, a loose sheet of a registration/check-in form with the logo of the Apartahotel and the scanned ID documents of the two young people who filed the complaint with the Municipal Police was attached.

SECOND: On 27/07/23, the Directorate of the Spanish Agency for Data Protection initiated sanctioning proceedings against the entity UNIQUE HOTEL APARTMENT, S.L., upon finding reasonable indications of a violation of the provisions established in Article 5.1.c) GDPR, for a possible excessive processing of personal data by scanning the clients' IDs.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) and RD 203/2021, of March 30, which approves the Regulation of action and operation of the public sector by electronic means, was made via electronic notification on 28/07/23.

THIRD: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the claimed party has not made allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

First: According to the Municipal Police of the Town Hall of Torrevieja (Alicante), following the inspection at the hotel establishment UNIQUE HOTEL APARTMENT, it was verified that there was no numerical entry of the records in the Customer Registration Book, as they were loose sheets with scanned IDs. Along with the letter, a loose sheet of a registration/check-in form with the logo of the

apartahotel and the scanned ID documents was attached.

LEGAL GROUNDS

I

Competence:

The Director of the Spanish Agency for Data Protection is competent to resolve this procedure, by virtue of the powers recognized to each Control Authority by Article 58.2 of the GDPR, and as established in Articles 47, 64.2, and 68.1 LOPDGDD.

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, since the entity UNIQUE HOTEL APARTMENT, S.L collects and retains personal data of clients and carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

On its part, Article 5.1.c) of the GDPR regulates the "principles relating to processing" establishing that: "1. Personal data shall be: c) adequate, relevant and...

3/6

limited to what is necessary in relation to the purposes for which they are processed ("data minimization")"

This article highlights that personal data will be "adequate, relevant, and limited to what is necessary" for the purpose for which it was collected, such that if the intended objective can be achieved without excessive data processing, that is how it should be done.

In turn, Recital 39 of the GDPR states: "Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means." Therefore, only data that is "adequate, relevant, and not excessive in relation to the purpose for which it is obtained or processed" will be processed.

The categories of data selected for processing must be strictly necessary to achieve the declared objective, and the data controller must strictly limit the collection of data to that information which is directly related to the specific purpose being pursued.

In this case, it is noted that the entity UNIQUE HOTEL APARTMENT, S.L. scans the clients' ID cards and does not comply with the current regulations regarding its obligation to communicate data to the State security forces and bodies.

Organic Law 4/2015, on the protection of citizen security, establishes in its Article 25.1 "Documentary registration obligations" the following:

"Individuals or legal entities that carry out activities relevant to citizen security, such as lodging, transportation of persons, commercial access to public use telephone or telematic services through establishments open to the public, trade or repair of used items, rental or dismantling of motor vehicles, buying and selling of jewelry and metals, whether precious or not, objects or works of art, security locksmithing, metal waste management centers, wholesale scrap or waste products trading establishments, or the sale of hazardous chemicals to individuals, shall be subject to the documentary registration and information obligations in the terms established by the applicable provisions."

Furthermore, Order INT/1922/2003, of July 3, on registration books and entry reports of travelers in hospitality establishments and other similar establishments includes, in its Annex, the "Model of entry report of travelers," and regarding the data of travelers, it indicates that the following data will be collected from travelers: "ID document number, type of document, date of issuance of the document, first surname, second surname, first name, sex, date of birth, country of nationality, date of entry."

III

Administrative Infraction

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/6

Thus, from the documentation in the file, it can be concluded that the copy of the identification document is not a necessary processing for carrying out the registration and complying with Organic Law 4/2015, constituting a violation of Article 5.1.c) of the GDPR, as it would not involve necessary data for the processing being carried out, considering that excessive data has been processed that is not necessary for the purpose for which it is intended.

IV

Sanction

The infringement of Article 5.1.c) of the GDPR constitutes one of the infractions classified in Article 83.5 of the GDPR, which states: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: "a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, 9."

For the purposes of the limitation period, Article 72 "Infringements considered 'very serious'" of the LOPDGDD states: "1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years: a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 5.1.c) of the GDPR, allows for a sanction of €2,000 (two thousand euros).

V

Measures

Article 58.2 of the GDPR establishes the corrective powers of a supervisory authority, and paragraph d) of the cited provision states that it may consist of "ordering the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period."

Therefore, it is appropriate to impose the corrective measure described in Article 58.2.d) of the GDPR and order the respondent to establish the necessary measures within one month to adapt the management of the client registration in the hotel establishment to the stipulations of Article 5.1.c) of the GDPR.

Thus, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection,

RESOLVES:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

FIRST: TO IMPOSE on the entity UNIQUE HOTEL APARTMENT, S.L., with CIF: B54915855, a fine of 2,000 euros (two thousand euros) for the infringement of Article 5.1.c) of the GDPR, as classified in Article 83.5 of the aforementioned GDPR.

SECOND: TO ORDER the entity UNIQUE HOTEL APARTMENT, S.L., with CIF: B54915855, to implement, within one month, the necessary corrective measures to align the management of customers' personal data with the provisions of Article 5.1.c) of the GDPR, as well as to inform this Agency within the same period about the measures adopted.

THIRD: TO NOTIFY this resolution to the entity UNIQUE HOTEL APARTMENT, S.L.

FOURTH: To warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency

for Data Protection at the banking entity CAIXABANK, S.A., or otherwise, it will be collected in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es